

## Multiple Choice (10 marks)

1. Why is it important to separate the concept of punishment from its justification?
  - (a) Because the concept of punishment has evolved over time.
  - (b) Because punishment can be justified in multiple ways.
  - (c) Because any definition of punishment should be value-neutral.
  - (d) Because the practice of punishment is separate from its justification.
  - (e) Because the justification of punishment varies across cultures.
2. In which instance would a state, under the enabling clause of the Fourteenth Amendment, be most able to regulate?
  - (a) A federal official from discriminating against a person based on race.
  - (b) A federal official from discriminating against a person based on gender.
  - (c) A federal official from discriminating against a person based on nationality.
  - (d) A private company from discriminating against a person based on nationality.
  - (e) A private individual from discriminating against a person based on race.
3. The \_\_\_\_\_ School of jurisprudence postulates that the law is based on what is "correct."
  - (a) Legal Pragmatism
  - (b) Legal Formalism
  - (c) Comparative
  - (d) Analytical
  - (e) Sociological
4. Which of the following will not terminate a contract by operation of law?
  - (a) Change in law that makes contract impossible
  - (b) Bankruptcy of one party
  - (c) Expiration of the contract term
  - (d) Partial performance
  - (e) Supervening illegality
5. Catharine MacKinnon argues that since men dominate women, the question is ultimately one of power. Which proposition below is the most inconsistent with this argument?

- (a) The power dynamic is determined by individual strength and not gender.
- (b) The idea of 'woman' needs to be redefined.
- (c) Women inherently possess more power than men.
- (d) Gender-based inequality is a myth.
- (e) Men and women share equal power in society.

## **True / False (10 marks)**

*Answer True or False*

- 6. True or False: The idea of 'natural law' was initially articulated during the American War of Independence, shaping its foundational principles.
- 7. True or False: According to Savigny's concept of Volksgeist, law is a manifestation of a society's cultural and historical identity.
- 8. True or False: An 'armed attack' as defined by Article 51 of the UN Charter includes all high intensity instances of armed force.
- 9. True or False: The concept of status in Maine's aphorism is frequently viewed as entirely unrelated to contemporary social contracts.
- 10. True or False: Llewellyn's distinction between grand and formal styles of legal reasoning is misleading as it oversimplifies the role of judges.

## **Long Form Response (20 marks)**

*Answer each question with a clear and complete explanation.*

- 11. Discuss the Doctrine of Worthier Title in the context of property law. How does this doctrine affect the validity of a grantor's heirs and the resulting reversion of property?
- 12. Discuss the implications of Maine's aphorism that 'the movement of progressive societies has hitherto been a movement from Status to Contract' and analyze how its misinterpretation as a prediction affects our understanding of societal evolution.

*End of Paper*